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Newsom signs into law bill expanding courts' rights to modify domestic violence protective orders

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SACRAMENTO – Governor Gavin Newsom recently signed into law Assembly Bill (AB) 467, a bipartisan measure authored by Assemblymember Jesse Gabriel (D-Encino), to strengthen California judges' ability to grant and modify domestic violence protective orders, a press release from Newsom's office stated.

"At a time in which violence against women and domestic abuse have increased to record levels around the world, it is crucial that we ensure domestic violence restraining orders are offering the fullest possible protection," Gabriel said in the press release. "This legislation will clarify a judge's authority over these orders and extend the amount of time a court can modify the orders to ensure that we are providing ample protection to victims of domestic abuse."

Santa Clara County District Attorney Jeff Rosen, a bill sponsor, praised the new domestic violence law as a crucial aspect in making sure victims of domestically violent crimes can petition the courts for changes to restraining order terms during the 10-year lifetime of such orders.

According to the press release, this allows for more or less protection of alleged victims on a per-instance and situational basis.

"Giving judges the ability to modify their own court orders will help victims of domestic violence manage the protections to keep them safe," Rosen said. "We are so grateful to Assemblymember Jesse Gabriel for championing this important new law."

Prior to the new law being signed, some courts were left confused, the press release stated, due to ambiguous verbiage of defining a term length of authority over a restraining order issued for domestic violence, and as to when such orders were able to be modified for the reintroduction of gradual contact, per both parties in agreement. Restraining orders issued are classified as either a "peaceful contact order" (PCO) or a no-contact order (NCO).

The press release states that victims sometimes, if not often, seek to modify an order from PCO to NCO or vice versa. The new law will allow courts to grant the modification without the confusion that once existed pertaining to changing orders. Some courts determined in the past that if a defendant is no longer serving a sentence and is not on probation, they do not have the jurisdiction to modify a restraining order even if both parties request the change.

The confusion caused by these discrepancies acted as a detriment to both victims and defendants, the press release stated. AB 467 acts on that belief to give sentencing courts the authority to modify terms of a peaceful contact order or no contact order for the duration of that order, so it can be adjusted as needed for both parties, according to the press release.

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